

Parties to appear. In addition to the PAGA issue, moving party should be prepared to explain the rationale for 80% risk adjustment for each category of individual damages.

JERRY DON MCEVER II v. BLUE MOUNTAIN CONSTRUCTION SERVICES, INC.
Case No. CU26-00043

Defendant's Motion to Compel Arbitration

TENTATIVE RULING

Absent the employment relationship being governed by a collective bargaining agreement, California law exempts from arbitration claims for due and unpaid wages. (Lab. Code, § 229.) However, California law is preempted by the Federal Arbitration Act ("FAA") when the contract at issue evidences a transaction involving interstate commerce. (9 U.S.C. § 2; *Perry v. Thomas* (1987) 482 U.S. 483, 490-491.) 9 U.S.C. §2, is to be read broadly, to apply to any contracts involving or affecting interstate commerce, "even if the parties did not contemplate an interstate commerce connection". (*Allied-Bruce Terminix Cos. v. Dobson* (1995) 513 U.S. 265, 275-277, 281.)

The burden of proof falls on the party seeking to enforce the arbitration agreement to show that it involves interstate commerce. (*Lane v. Francis Capital Management LLC* (2014) 224 Cal.App.4th 676, 687-688 ["a petitioner seeking an order to compel arbitration must show that the subject matter of the agreement involves interstate commerce"].

Notably, the arbitration agreement before the court does not expressly invoke the FAA and states that California law governs. It therefore appears the arbitration agreement before the court is controlled by California law and not preempted by the Federal Arbitration Act. Untimely information cannot be submitted by a moving party on reply; thus it is a moving party's burden to establish that an arbitration agreement involves interstate commerce in its initial papers, and Defendant did not make such a showing in its initial motion. Given that the arbitration agreement expressly provides it is controlled by California law this seems a moot issue out the gate.

Neither party addresses the effect of Labor Code section 229 on which claims must be compelled to arbitration or whether the claims pending in the civil action that are not compelled to litigation should be stayed while claims that are not exempted by Labor Code section 229 are compelled to arbitration. Supplemental briefing as to this issue is necessary.

As to the class action waiver, Defendant argues (without citation to any case law) that the *Gentry* factors require consideration of admissible evidence rather than counsel's conclusions. Counsel for Plaintiff concludes the amounts sought by Plaintiff are modest based on his experience in most wage and hour cases. But with that limited analysis, no class action waiver could ever be enforced in California. That is not what *Gentry* holds.

Discovery in this case has been stayed as to Plaintiff's individual claims and as to the representative claims. This matter will be continued to afford Plaintiff's counsel the ability to seek discovery solely as to MCEVER's individual claims of due and unpaid wages in order to provide a substantive analysis as to the class action waiver.

The court continues the motion to compel arbitration to afford the parties the opportunity to provide supplemental briefing as to these limited issues and to permit the parties to engage in discovery as to MCEVER's individual claims as to due and unpaid wages only. This discovery will not constitute a waiver of an agreement to arbitrate.

Supplemental briefs are due November 5, 2027 by noon and shall not exceed 10 pages. Hearing on the continued motion is continued to **November 19, 2026 at 9:00 a.m.**

Cuong The Chau v Long Hoang
Case No. CU26-00473

Motion for Attorneys' Fees

TENTATIVE RULING:

Respondent's motion for attorneys' fees is DENIED. The civil harassment action is related to an ongoing family law dispute involving Petitioner and Respondent's significant other. The civil harassment matter was dismissed by Petitioner after the parties were encouraged by the court to resolve the conflict and determined to do so in the best interests of the children and resolution of the ongoing custodial dispute. The dismissal was not solely on the basis that a continuance was denied. Petitioner was not advised that Respondent would seek attorneys fees following a voluntary dismissal nor did the court so advise Petitioner. As the dismissal was in the nature of settlement efforts, rather than a concession of the merits, the equities do not support an award of attorneys fees.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645
Passcode: 675002